

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR DECEMBER 9, 2025
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP15-00527 RE THE PAIGE REYNOLDS SPECIAL NEEDS TRUST**
9:00 AM HEARING IN RE: PETITION TO APPROVE 6TH ACCOUNT & REPORT OF CO TRUSTEES FROM N3-1-23
THROUGH 2-28-25, & TO APPROVE ATTORNEY FEES FILED ON 7-22-25 BY JOHN REYNOLDS & CYNTHIA
REYNOLDS

Need:

1. Appearances
2. Authority for court to approve attorney's fees related to conservatorship in this proceeding as requested in Decl. filed 8-21-2025 at page 4, ¶ 9.
Conservatorship was opened as Case # P24-00536. It appears this trust was not created pursuant to substituted judgment.
3. Bond presented for filing before Order will be signed.

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2A.	P22-01810	MATTER OF: THE ROBERT L. TONG AND HELEN TONG FAMILY TRUST, DATED SEPTEMBER 23, 1987, AMENDED AND RESTATED ON JANUARY 29, 2015
9:00 AM	HEARING IN RE: NOTICE OF MOTION AND MOTION FOR ORDER ENFORCING THE SETTLEMENT AGREEMENT; REQUEST FOR ATTORNEYS FEES AND DOUBLE DAMAGES; MEMORANDUM OF POINTS AND AUTHORITIES; AND DECLARATION OF GLENN TONG FILED ON 7-18-25 BYGLENN TONG	
On its own motion, the court CONTINUES this matter to April 16, 2026, at 9:00 a.m., in Department 38. Not later than January 9, 2026, moving party Glenn Tong is ordered to specify precisely the relief he is requesting (i.e., the precise language of the orders that he is requesting). A prayer to “enforce the settlement agreement” is impermissibly vague for the court to evaluate. In addition, not later than January 9, 2026, the court requests both parties to this motion to file simultaneous supplemental briefing (not to exceed 7 pages) on the following issue: what affect, if any, does the waiver of Civil Code section 1542 (Settlement Agreement, Paragraph 19) have on the Trustee’s assertion that later-discovered (i.e., after Robert L. Tong’s death) estate planning documents that are alleged to have been executed prior to July 15, 2022, are valid in light of the terms of the Settlement Agreement. In responding to this briefing request, the parties are to provide specific references to the language of the Settlement Agreement (especially, but not limited to, Paragraphs 4.a., 4.c., 6 and 8) and any applicable law. The parties’ briefing is expressly limited to the language of the Settlement Agreement only, and no additional facts are to be presented. No further briefing is otherwise authorized. Need: 1. Appearances 2. Proposed Order Notes: 1. “Order Granting Ex Parte Petition for Approval of Settlmnt Agreement” filed by Laurence Tong 8-18-2025. 2. Notice of Motion and Motion to Enforce Settlement Agreement Dated September 23, 2023, filed by Nora Tong 11-19-2025 is set for hearing 4-16- 2026. 3. Nora Tong’s Opposition filed 11-24-2025.		

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2B. **P22-01810** **MATTER OF: THE ROBERT L. TONG AND HELEN TONG FAMILY TRUST, DATED
SEPTEMBER 23, 1987, AMENDED AND RESTATED ON JANUARY 29, 2015**
9:00 AM HEARING IN RE: PETITION TO RATIFY EXECUTION OF LINE OF CREDIT PROMISSORY NOTE FILED BY
ELIZABETH TONG ON 01/15/2025

Continue to 4-16-2026

When to proceed, will Need:

1. Appearances to report status
2. Proposed Order

Notes:

1. Objection of Larry Tong filed 2-28-2025.
2. Objection of Glenn Tong filed 3-6-2025.

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2C. **P22-01810** **MATTER OF: THE ROBERT L. TONG AND HELEN TONG FAMILY TRUST, DATED
SEPTEMBER 23, 1987, AMENDED AND RESTATED ON JANUARY 29, 2015**
9:00 AM HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUE AND COMPLETE COPY OF THE TERMS OF
THE TRUST FILED BY GLENN TONG ON 11/8/24

Continue to 4-16-2026

When to proceed, will Need:

1. Appearances to report status
2. Proposed Order

Note: Nora Tong's Opposition filed 3-7-2025.

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2D.

P22-01810

**MATTER OF: THE ROBERT L. TONG AND HELEN TONG FAMILY TRUST, DATED
SEPTEMBER 23, 1987, AMENDED AND RESTATED ON JANUARY 29, 2015**

9:00 AM

HEARING IN RE: PETITION FOR ORDER DETERMINING CONSTRUCTION OF TRUST AGREEMENT; AND
TO ENJOIN TRUSTEE FROM USING TRUST FUNDS FOR LEGAL EXPENSES FILED ON 7-11-25 BY GLENN
TONG

Continue to 4-16-2026

When to proceed, will Need:

1. Appearances
2. Proposed Order

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2E. P22-01810 **MATTER OF: THE ROBERT L. TONG AND HELEN TONG FAMILY TRUST, DATED
SEPTEMBER 23, 1987, AMENDED AND RESTATED ON JANUARY 29, 2015**
9:00 AM HEARING IN RE: RETURN FROM BRESLIN MEDIATION

Continue to 4-16-2026

When to proceed, will Need:

Appearances to report status

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2F.

P22-01810

**MATTER OF: THE ROBERT L. TONG AND HELEN TONG FAMILY TRUST, DATED
SEPTEMBER 23, 1987, AMENDED AND RESTATED ON JANUARY 29, 2015**

9:00 AM

HEARING IN RE: PETITION OF TRUSTEE AND ATTORNEY-IN-FACT NORA TONG FOR REVIEW AND
APPROVAL OF ACCOUNTING, RATIFICATION OF TRUSTEE'S ACTION, APPROVAL OF FIDUCIARY AND
ATTORNEY'S FEES FILED ON 9/13/2024 BY NORA TONG

Continue to 4-16-2026

When to proceed, will Need:

1. Appearances to report status
2. Verified declaration in support of attorneys' fees paid to Brilliant Law Firm and Thompson Law Offices as reported at schedule of disbursements. Statement showing services rendered, hours and rates charged so ct. can evaluate attorney fees reported. LR 7.450

Notes:

1. Objection of Glenn Tong filed 1-21-2025.
2. Respondent Laurence Tong's Joinder in Respondent Glenn Tong's Objection filed 2-13-2025.

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8A. **P23-01491** **MATTER OF: THE LEROY JAMES FRANKLIN, SR. LIVING TRUST**
9:00 AM HEARING ON PETITION IN RE: STATUS - PETITION OF INSTRUCTIONS FOR SUSPENSION OF POWERS
AND REMOVAL OF SHAWN KING FILED ON 8/24/23 BY LEROY J. FRANKLIN JR.

Need appearances to report status

Notes:

1. Trial is set for 2-6-2026, 2-13-2026 and 2-19-2026, pursuant to 7-24-2025 minute order.
2. Motion to Hold Co-Trustee Shawn King in Contempt filed by Leroy Franklin Jr. 10-29-2025, is set for hearing 3-26-2026.

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8B. **P23-01491** **MATTER OF: THE LEROY JAMES FRANKLIN, SR. LIVING TRUST**
9:00 AM HEARING ON PETITION IN RE: PETITION FOR APPROVAL OF FIRST TRUST ACCOUNT FILED BY SHAWN
KING ON 11/1/24

Need:

1. Appearances to report status
2. Fair Market Value Schedule at the ending of the account period. PrC § 1063(a).
3. Verified declaration by petitioner to include total receipts
4. Proposed Order

Notes:

1. Objections to Trustee's Accounting filed by Terrance Franklin 2-26-2025.
2. Co-Trustee Leroy Franklin Jr.'s Objection filed 11-3-2025.

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8C.

9:00 AM

P23-01491

MATTER OF: THE LEROY JAMES FRANKLIN, SR. LIVING TRUST

HEARING ON PETITION IN RE: FOR INSTRUCTIONS FOR SUSPENSION OF POWERS, REMOVAL AND APPOINTMENT OF TRUSTEE; SURCHARGE; BREACH OF FIDUCIARY DUTY; PUNITIVE DAMAGES FILED ON 02/26/25 BY TERRANCE FRANKLIN

Need:

1. Appearances to report status
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

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11.

9:00 AM

P24-00797

ESTATE OF: GEORGE RUTTER

HEARING IN RE: 1ST & FINAL REPORT OF ADMINISTRATOR & WAIVER OF ACCOUNTING; PETITION FOR APPROVAL & SETTLEMENT OF ESTATE; ALLOWANCE OF ADMINISTRATOR'S & ATTORNEY STATUTORY FEES; FINAL DISTRIBUTION FILED ON 7-20-25 BY JAMES R RUTTER

Need:

1. Corrected proof of mailing with Item # 4.a. (date mailed) completed. Proof of Service attached to Notice filed 11-20-2025 is incomplete.
2. Verified declaration by petitioner to include sale price of real property and vehicle so court can determine whether there were any losses on sale that should be included in statutory fee calculation
3. Property tax certificate filed. PrC § 8800(d)
4. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable, if any.
5. Revised, proposed Order as needed in resolution of above

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12. 9:00 AM	P25-00516 ESTATE OF: NICKOLAI POPOV HEARING IN RE: PETITION FOR INSTRUCTIONS TO HIRE COUNSEL FOR CIVIL LITIGATION [PROBATE CODE 9823] FILED ON 7-18-25 BY MICHAEL POPOV Need: 1. Appearances 2. Proposed Order
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13. 9:00 AM	P25-01281 HEARING IN RE: PETITION FOR MODIFICATION OF TESTAMENTARY TRUST RE DESIGNATION OF SUCCESSOR TRUSTEES & TO FILL FUTURE VACANCIES BASED ON CONSENT OF ALL BENEFICIARIES FILED ON 7-22-25 BY GERALD D OVERAA Need: Proposed Order	MATTER OF: THE TRUST CREATED UNDER THE WILL OF JULIA OVERAA
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